

CV-26-007991 VASQUEZ, SUSANA vs CITY OF HUGHSON – Petitioner’s Petition for Relief from the Claim Presentation Requirement (Gov. Code 946.6) - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: FACTUAL AND PROCEDURAL SUMMARY Petitioner Vasquez was elected council member for the City of Hughson in November, 2024. She alleges seriously improper behavior by Mayor George Carr occurred on July 14, 2025 and November 10, 2025. On June 25, 2026, Petitioner retained counsel and submitted a claim and a request for leave to file the late claim on June 30, 2026. This was denied by the City, and the petition was filed on August 11, 2026. Petitioner first reported the July 14, 2025 behavior “within several weeks” to the city attorney and city manager. They told her to resolve the issue with Mayor Carr and took no other action. Petitioner reported the November 10, 2025 incident the next day. The City retained an investigator, who wrote a letter sustaining the allegations in a letter dated March 9, 2026. Petitioner asked “What happens next?” and the City said that the council is a self-regulating body. On May 26, 2026, the city formally censured Mayor Carr. ANALYSIS This petition addresses only the issue of permitting a late-filed claim, not the merits of the underlying factual claims against Mayor Carr. Government Code section 945.4 requires a claim within six months. Section 946.6 demonstrates the showing necessary to overcome a city’s denial of a late claim. First, the petition must be filed within a year of the denial by the City. Second, the application was denied. Both of these are met. The third is that Petitioner shows by a preponderance of the evidence that the failure to present a timely claim was through mistake, inadvertence, surprise, or excusable neglect. None of these are present. Petitioner accurately notes that the comparison to a “reasonably prudent person” is the touchstone. (Department of Water and Power v. Superior Court (2000) 82 Cal.App. 4th 1288.) In this case, Petitioner was looking for an “amicable resolution,” and was told after the first incident that the City was not going to take action. At no point did Petitioner expressly make a monetary claim until the late-filed claim. Petitioner asserts that the ongoing investigation would cause a reasonably prudent person to wait, but there was no investigation from July to November of 2025. And the investigation was still with the caveat that the council was self-regulating. Plaintiff’s cases do not support her claim of excusable neglect. In Bertorelli v. City of Tulare (1986) 18 Cal.App.3d 432, the Court indicated that if there are ongoing settlement discussions over the 100-day claim period (at that time) combined with false statements provided by Tulare about those settlement discussions was enough to overcome the reasonably prudent person standard. The facts in DeVore v. California Highway Patrol (2013) 221 Cal.App.4th 454 are extraordinary and not comparable to this case. In DeVore, plaintiffs discovered the reason for alleged liability at a criminal preliminary hearing months after the collision that killed their family member. Within six months of the time they learned those facts, they filed a claim. In Syzmore v. County of Sacramento (1976) 55 Cal.App.3d 517, the analysis of excusable mistake is brief and on the facts presented not generalizable. In that case, the ruling was primarily that a military stay statute applied and therefore the application was timely in any event. The only potential mistake or excusable neglect here is the lack of knowledge of the six-month filing requirement, which, without more, does not constitute cause to permit the late filing. (Harrison v. County of Del Norte (1985) 168 Cal.App.3d 1, 7). Even were Vasquez not an elected city council member, her claim would have to be denied. But she cannot effectively claim to be a layperson on the issue of city claims. The Court does not reach the prejudice issue, but if it did it would not find prejudice to the City in the late filing. City to provide an order consistent with this ruling. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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FACTUAL AND PROCEDURAL SUMMARY

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On May 26, 2026, the city formally censured Mayor Carr.

ANALYSIS

This petition addresses only the issue of permitting a late-filed claim, not the merits of the underlying factual claims against Mayor Carr.

Government Code section 945.4 requires a claim within six months. Section 946.6 demonstrates the showing necessary to overcome a city’s denial of a late claim. First, the petition must be filed within a year of the denial by the City. Second, the application was denied. Both of these are met.

The third is that Petitioner shows by a preponderance of the evidence that the failure to present a timely claim was through mistake, inadvertence, surprise, or excusable neglect. None of these are present.

Petitioner accurately notes that the comparison to a “reasonably prudent person” is the touchstone. (Department of Water and Power v. Superior Court (2000) 82 Cal.App. 4th 1288.)

In this case, Petitioner was looking for an “amicable resolution,” and was told after the first incident that the City was not going to take action. At no point did Petitioner expressly make a monetary claim until the late-filed claim. Petitioner asserts that the ongoing investigation would cause a reasonably prudent person to wait, but there was no investigation from July to November of 2025. And the investigation was still with the caveat that the council was self-regulating.

Plaintiff’s cases do not support her claim of excusable neglect. In Bertorelli v. City of Tulare (1986) 18 Cal.App.3d 432, the Court indicated that if there are ongoing settlement discussions over the 100-day claim period (at that time) combined with false statements provided by Tulare about those settlement discussions was enough to overcome the reasonably prudent person standard.

The facts in DeVore v. California Highway Patrol (2013) 221 Cal.App.4th 454 are extraordinary and not comparable to this case. In DeVore, plaintiffs discovered the reason for alleged liability at a criminal preliminary hearing months after the collision that killed their family member. Within six months of the time they learned those facts, they filed a claim.

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